SHERPERD KUFAKWAMI DZEMURA
versus
ALICE CHENAI DZEMURA (NEE CHIRINDA)

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 19, 26, 28 & 30 January & 12 March 2026

Matrimonial trial

S Sakupwanya, for Plaintiff
KS Chavhuna and CT Nhemwa, for Defendant

TSANGA J

This is a divorce matter in which the parties are agreed that their marriage relationship has irretrievably broken down and that a decree of divorce should be granted. The parties were initially married in terms of customary law for a period exceeding a decade before formally registering their marriage on 19 August 2013. Four children were born of the marriage. Two of the children are now majors, aged 24 and 19 respectively, whilst the remaining two children, aged 12 and 6 years, are still minors.

At a joint pre-trial conference held before a judge, the parties recorded several admissions and agreements. They agreed that the marriage had irretrievably broken down and that a decree of divorce should be granted. They also agreed on the distribution of certain movable assets. In that regard, it was agreed that the defendant would be awarded a Mazda BT 50 motor vehicle bearing registration number AEK 6005 whilst the plaintiff would retain a Nissan Sunny X Saloon bearing registration number ADDD 6979.

The plaintiff had offered to pay maintenance in the sum of US$600.00 per month for the minor children, an amount inclusive of US$150.00 spousal maintenance for a period of three months. The defendant rejected that offer. The matter was therefore referred to trial on the following outstanding issues:

1. What constitutes just and equitable maintenance for the minor children; and
2. Whether the defendant is entitled to spousal maintenance, and if so, the quantum thereof.

EVIDENCE

Plaintiff's evidence

The plaintiff, Shepherd Dzemura, testified that the parties have four children aged 24, 19, 12 and 6 years respectively. The eldest child is completing university studies, the 19-year-old is doing Upper Sixth, the 12-year-old is in Grade 7 and the youngest child is in Grade 1.

He testified that the defendant had claimed maintenance of US$1 300.00 per month for the minor children, which he stated he could not afford. He produced payslips reflecting net earnings of approximately US$1 041.97 together with a ZiG component of ZiG 6 109.87. Taking the ZiG component into account, his total monthly income is approximately US$1 240.00 converting the ZiG earnings.

The plaintiff further testified that since moving out of the matrimonial home in May of 2025, he has been paying US$380.00 per month in rentals. He has also incurred expenses in acquiring furniture and meeting other living costs such as electricity and transport. He indicated that he spends approximately US$60.00 per month on fuel.

He testified that he is the one paying school fees for all the children, namely approximately US$100.00 for each of the two minor children, US$410.00 for the child doing Upper Six and approximately US$1 200.00 per semester for the child at university.

The plaintiff acknowledged that he had indeed previously offered to pay US$600.00 per month, inclusive of spousal maintenance, but explained that the offer was only intended to operate for a period of three months. He maintained that in light of his present financial obligations he could no longer sustain that amount.

He proposed that he be ordered to pay US$300.00 per month in total for the children, allocating US$70.00 to each of the two minor children, with the balance assisting the two adult children who are still residing with their mother.

In cross-examination, the plaintiff conceded that during the approximately 24 years of the parties' relationship the defendant had largely not been in formal employment, save for a brief period when she worked as a temporary teacher many years ago. He denied that he prevented her from working and testified that he paid for her to study for a degree in psychology at Women's University. He confirmed that the family had largely survived on his salary.

The plaintiff also testified that when he moved out of the matrimonial home he left behind approximately US$7 000.00 which the defendant utilised for household and children's expenses. He acknowledged that he had not been paying monthly maintenance since leaving

the matrimonial home, explaining that the amount he left was intended to cushion the family. It was put to him that there had been an understanding that the defendant would retain the US$7 000.00 while he retained a Fidelity fund. He did not materially dispute that such discussions had taken place.

With regards to transport costs, he disputed the defendant's claim that she spends US$300.00 per month on fuel for school runs, but conceded that she would require at least US$120.00 per month. He further conceded that it would not be prudent to move their Grade 7 child to a new school at this stage.

The defendant's Evidence

The defendant, Alice Chenai, testified that she initially claimed US$1 300.00 per month for the maintenance of the children and US$300.00 per month for her own maintenance. She indicated that she was prepared to reduce those claims to US$500.00 per month for the children and US$150.00 per month for spousal maintenance.

She stated that the household grocery bill alone exceeds US$700.00 per month, reflecting the standard of living to which the family had become accustomed during the marriage. However, she did not produce documentary proof of this level of expenditure apart from her own list.

The defendant also testified that she is nearly 46 years old and has limited work experience. She stated that she has been unable to secure employment. Her principal contribution during the marriage consisted of caring for the children, performing domestic duties and transporting the children to and from school.

She explained that the school attended by the children is approximately 22 to 25 kilometres from their residence. The parties had jointly chosen that school because of its perceived quality and there are no comparable schools in the Fidelity area where they had moved to and where she currently resides.

The defendant further testified that the youngest child suffers from breathing difficulties and frequently requires medication, nebulisation and specialist attention, often costing more than US$100.00 per month. She produced a letter from a doctor referring the child to a specialist.

She disputed the plaintiff's evidence regarding his earnings, stating that at the time of separation she knew him to be earning approximately US$2 300.00 per month, part of which was paid in ZiG. However, she was unable to produce documentary proof contradicting the payslips tendered by the plaintiff. She also testified that the US$7 000.00 left by the plaintiff

has since been exhausted and that she has had to rely on assistance from church members and friends.

THE LAW

In determining maintenance obligations, the court is guided by the principle that both parents have a legal duty to maintain their minor children according to their means and the needs of the children.

Section 7 of the **Matrimonial Causes Act [*Chapter 5:13*]** empowers the court, when granting a decree of divorce, to make such orders as it considers just with regard to the maintenance of the parties and their children. In exercising this discretion, the court must consider all the circumstances of the case, including the income-earning capacity, financial resources and obligations of each party as well as the standard of living of the family prior to the dissolution of the marriage.

The duty to maintain children is also recognised under the *Maintenance Act* **[***Chapter 5:09***]**, which requires that maintenance orders take into account both the reasonable needs of the children and the ability of the parent to pay. It is well established that the best interests of the child are of paramount importance in matters concerning their welfare. This principle is now constitutionally entrenched in s 81 of the Constitution of Zimbabwe. In divorce proceedings the court must adopt a broad and equitable approach, taking into account the entire circumstances of the parties and striving to reach a fair result. Maintenance awards must strike a balance between the needs of the dependants and the paying party's capacity to meet the obligation.

ANALYSIS

The plaintiff's income was supported by documentary evidence in the form of payslips. The defendant suggested that he may earn more than reflected in those documents but produced no evidence to substantiate that assertion. In the absence of such evidence, the court accepts the payslips as the most reliable indicator of the plaintiff's earnings.

The evidence establishes that the plaintiff earns approximately US$1 240.00 per month inclusive of the ZiG component. From this amount he must meet his own living expenses including rent of US$380.00 per month, transport and other necessities. He is also meeting significant educational expenses for all the children including university fees for the eldest child.

The defendant's evidence demonstrates that the needs of the minor children are considerable. Transport costs, groceries and medical expenses are all significant factors. The

court accepts that the youngest child's medical condition requires ongoing treatment which inevitably increases household expenditure.

However, certain figures advanced by the defendant, particularly the grocery expenditure of over US$700.00 per month, were not supported by documentary evidence and appear somewhat excessive when considered in the context of the plaintiff's income.

The plaintiff's proposal of US$300.00 per month is clearly inadequate to meet the reasonable needs of the two minor children. On the other hand, the amount of US$500.00 sought by the defendant would impose an excessive financial burden on the plaintiff given his earnings and other obligations.

Balancing the needs of the children with the plaintiff's financial capacity, the court is satisfied that an award of US$400.00 per month for the two minor children, inclusive of transport costs together with the plaintiff's continued payment of their school fees, represents a fair and equitable arrangement.

With regards to spousal maintenance, the plaintiff's primary argument is that the defendant should be self-supporting as she has a professional qualification and is relatively young at 46 years old. He also emphasises maintenance is a joint responsibility. His rationale that she should be self-supporting rests on guiding principles captured in *Chiomba* v *Chiomba* 1992 (2) ZLR 197 (S) and summarised in the headnote from Hahlo 's South African Law of Husband and Wife (5th Ed) as follows:

> "…marriage can no longer be seen as providing a woman a bread ticket for life. A marriage certificate is not a guarantee of maintenance after marriage has been dissolved. Young women who worked before marriage and are able to work and support themselves after divorce will not be awarded maintenance if they have no young children. If a young woman has given up work she will be awarded a short-term maintenance to tide her over until she finds a new job. Middle aged women who have devoted themselves to the management of the household and care of the children should be given "rehabilitative" maintenance for a period long enough to enable them to be trained or retrained for a job or a profession. Elderly women who have been married for a long time and are too old to now go out earn a living and are unlikely to remarry will require permanent maintenance."

Being that as it may, a court must determine the matter with due regard to the social and economic realities within which many families function. It is a matter of common experience that, even for those with professional qualifications, employment opportunities remain limited for both the young and the middle-aged in our country and most people are self-employed. While it is also true that women have entered the labour market, and, may not rely entirely on men for their survival, it remains the lived reality that women continue to shoulder a disproportionate share of child-rearing and domestic responsibilities. It is well-

recognised that raising a child into a functional member of society is not merely a matter of financial provision. It requires a significant investment of time, care, and emotional support.

In the present matter, the defendant devoted a substantial portion of her time and energy to her role as a stay-at-home mother. The court is mindful that such dedication to child-rearing frequently comes at the expense of professional development and sustained participation in the labour market. In assessing the parties' respective positions upon divorce, these sacrifices cannot simply be ignored. The defendant does not seek maintenance in perpetuity. Rather, she seeks support for a limited period while she attempts to re-establish herself financially. The plaintiff contends that the defendant should readily be able to sustain herself. However, in the court's view, that submission does not sufficiently take into account the realities confronting the defendant. Her marketable skills may well have diminished rather than expanded, given her prolonged absence from formal employment and the fact that she is now in her forties.

In the immediate term, financial assistance from the plaintiff appears to be the most practical means of enabling the defendant to regain her footing. She is plainly not on an equal economic footing with the plaintiff. These are the practical realities which this court is enjoined to consider when assessing the parties' respective future needs and responsibilities.

The court is also mindful that generalised assertions regarding the financial independence of women do not necessarily yield a just outcome when viewed against such gendered realities. If the defendant is to initiate any form of income-generating activity of her own, some measure of financial assistance will be required, however modest, particularly in light of the plaintiff's responsibilities.

Muzhandamuri v Muzhandamuri HMA45/23, is an example where it was held that temporary maintenance may be appropriate to enable a spouse to regain financial independence following divorce. Rehabilitative maintenance was granted for three years taking into account the spouse in need's medical condition. The duration and quantum of post-divorce maintenance must be just and proportionate to the circumstances of the parties. See *Alastair Walter Pollock v Abigail Rosalyn Smith* SC 50/20.

In the present case, the defendant devoted substantial time and energy to the role of a stay-at-home mother, thereby sacrificing career opportunities and the development of marketable skills. It is therefore appropriate to consider temporary financial assistance to facilitate her transition towards self-sufficiency. The court, guided by the principles established in the aforementioned authorities, finds that post-divorce maintenance in this

instance should be limited in duration, directed towards rehabilitative support rather than perpetual maintenance, and calibrated to her reasonable needs and the plaintiff's ability to pay.

The court is satisfied that the defendant's claim is properly characterised as one for temporary assistance intended to facilitate her transition towards self-sufficiency in the circumstances she presently faces. In such circumstances, it would be inequitable to leave the defendant without any form of financial support immediately following the dissolution of the marriage. However, the plaintiff's financial capacity is limited and any award of spousal maintenance must reflect that reality. Maintenance on divorce may not necessarily be at the level that a spouse was used to during the marriage especially where there is only one source of income and two households are created upon divorce.

In the result, the court is therefore satisfied that a modest award of US$150.00 per month for a limited period of twelve months would constitute appropriate rehabilitative maintenance, enabling the defendant to stabilise her circumstances and seek a means of survival.

ORDER

Accordingly, it is ordered as follows:

1. A decree of divorce be and is hereby granted.
2. The plaintiff shall pay maintenance for the two minor children in the sum of US$400.00 per month, payable on or before the first day of each month commencing on the first day of the month following this order.
3. The plaintiff shall continue to be responsible for the school fees and reasonable educational expenses of the minor children.
4. The plaintiff shall pay spousal maintenance to the defendant in the sum of US$150.00 per month for a period of twelve (12) months, commencing on the first day of the month following this order.
5. Each party shall bear his or her own costs.

TSANGA J…….

Mudzonga Law Chambers: Plaintiff's legal practitioners
C. Nhemwa & Associates: Defendant's legal practitioners